

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Purchased 6-23-2017

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NIGEL PHILBERT,

Plaintiff,

-against-

Plaintiff designates

New York County as the place of trial

The basis of the venue is where the
tort arose

THE CITY OF NEW YORK, P.O. FRANK KURYS
FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO
GRAND LARCENY DIVISION, SHIELD #27761, TAX
ID #938799 OTHER NEW YORK CITY POLICE
OFFICERS ON SAID ARREST WHOSE NAMES ARE
NOT KNOWN AT THIS TIME N/H/A JOHN/JANE
DOE I-IV, AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON APRIL 8, 2016, AND NO OTHER,

SUMMONS

Plaintiff resides at

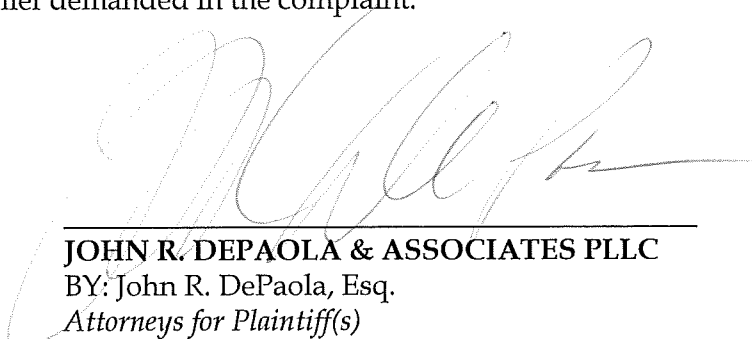
NIGEL PHILBERT

1560 Metropolitan Avenue, Apt. 6B
Bronx, New York 10462Defendants.
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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete is this summons is not personally delivered to you within the State
of New York; and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 22, 2017



JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: John R. DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND
LARCENY DIVISION, SHIELD #27761, TAX ID #938799**
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK Index No.:
COUNTY OF NEW YORK

-----X
NIGEL PHILBERT,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. FRANK KURYS
FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO
GRAND LARCENY DIVISION,, SHIELD #27761, TAX
ID #938799, OTHER NEW YORK CITY POLICE
OFFICERS ON SAID ARREST WHOSE NAMES ARE
NOT KNOWN AT THIS TIME N/H/A JOHN/JANE
DOE I-IV, AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON APRIL 8, 2016, AND NO OTHER,

Defendants.

-----X

NIGEL PHILBERT, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff, NIGEL PHILBERT, was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 1st day of July, 2016 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, CITY

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable. Additionally, on or about the 4th day of October, 2016, and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Supplemental Notice of Claim in writing upon sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Supplemental Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable, and added the claim of malicious prosecution.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE**

NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

7. On or about April 8, 2016 at approximately 3:40 A.M., in the vicinity of the inside of Webster Hall, 125 East 11th Street, in the City, County and State of New York the Defendants, P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, NIGEL PHILBERT, in an excessive manner about his person, including grabbing his arms, forcing his hands behind his back, throwing him to the ground, causing him significant injury, physical pain and mental suffering, including but not limited to having his jaw dislocated in two (2) places. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about April 8, 2016 at approximately 3:40 A.M., in the vicinity of the inside of Webster Hall, 125 East 11th Street, in the City, County and State of New York, the Defendants, **P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER**, jointly and severally did place Plaintiff, **NIGEL PHILBERT**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about April 8, 2016 at approximately 3:40 A.M., in the vicinity of the inside of Webster Hall, 125 East 11th Street, in the City, County and State of

New York, the Defendants, P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2016NY023012. The Plaintiff was thereafter held in custody over the course of approximately seventeen (17) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about April 8, 2016 at approximately 3:40 A.M., in the vicinity of the inside of Webster Hall, 125 East 11th Street, in the City, County and State of New York, the Defendants, P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS

ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER, AND NO OTHER, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility, or held in a police station and/or central booking. The Plaintiff was thereafter held in custody over the course of approximately seventeen (17) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about April 8, 2016, and from that time until the dismissal of all the charges on or about July 12, 2016, which was a favorable termination for the accused, by the Honorable Judge presiding at New York County Criminal Court, Part A, Defendants, **THE CITY OF NEW YORK, P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS ON SAID**

ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER, maliciously prosecuted, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, New York County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2016NY023012 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants, **P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff, **NIGEL PHILBERT**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant, **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about April 8, 2016 at approximately 3:40 A.M., in the vicinity of the inside of Webster Hall, 125 East 11th Street, in the City, County and State of New York, the Defendants, **P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION, SHIELD**

#27761, TAX ID #938799 OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON APRIL 8, 2016, AND NO OTHER, armed police, while effectuating the seizure of the Plaintiff, NIGEL PHILBERT, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. The police officer who actually processed the arrest of the Plaintiff was **P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO GRAND LARCENY DIVISION,, SHIELD #27761, TAX ID #938799** and/or communicated with the New York District Attorney's Office. The named officer was directed to arrest and process the Plaintiff; and/or otherwise, along with those named as "OTHER NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV" assisted in the investigation that led to the arrest of the Plaintiff. Plaintiff is unaware of the name of the officer who actually placed him in handcuffs. Plaintiff describes the officers as three to four (3-4) white police officers, who some of which grabbed his arms, pulled them forcefully behind his back, and slammed him to the ground, causing his jaw to dislocate in two (2) places. Plaintiff was then handcuffed on the ground, while being held

down. Plaintiff is unaware of the names of the officers, aside from those officers already named. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. Plaintiff was taken from the incident scene by ambulance to a local hospital. Plaintiff was held in custody for over seventeen (17) hours before being released, and was maliciously prosecuted for this alleged incident until the dismissal of the charges on or about July 12, 2016, by the Hon. Judge presiding at Part A of the New York County Criminal Court. Due to the lack of probable cause, malice can be inferred.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of his liberty.
 - i. Freedom from being illegally searched.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
31. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "31" as it set forth at length herein.
33. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact

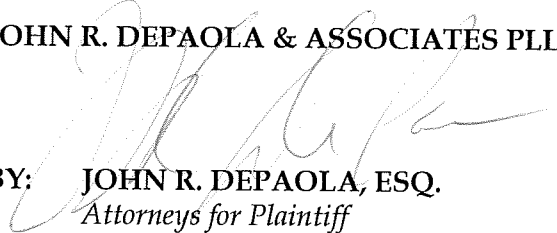
that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
June 22, 2017

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  JOHN R. DEPAOLA, ESQ.
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
NIGEL PHILBERT,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, P.O. FRANK KURYS
FORMERLY OF THE 9TH PCT, NOW ASSIGNED TO
GRAND LARCENY DIVISION, SHIELD #27761, TAX
ID #938799, OTHER NEW YORK CITY POLICE
OFFICERS ON SAID ARREST WHOSE NAMES ARE
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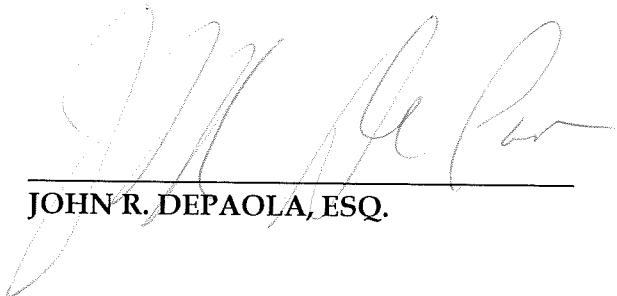
Defendants.

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I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 22, 2017



JOHN R. DEPAOLA, ESQ.

Index No. :

12017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

NIGEL PHILBERT,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. FRANK KURYS FORMERLY OF THE 9TH PCT, NOW
ASSIGNED TO GRAND LARCENY DIVISION, SHIELD #27761, TAX ID #938799, OTHER
NEW YORK CITY POLICE OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON APRIL 8, 2016, AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Suite 500
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for